

STUDENT BARE ACT DRAFT

Lesson 1: What is a Bare Act?

A Bare Act is the primary legislation enacted by Parliament or a State Legislature that establishes legally binding rules. The actor is the Legislature, which creates the law, while courts, government authorities, and citizens interpret, administer, and comply with its provisions. The legal effect is the creation of enforceable rights, duties, powers, liabilities, and penalties that have legal force. The structural purpose of this concept is to provide the statutory foundation of the legal framework before detailed provisions, procedures, and enforcement mechanisms are introduced. My key drafting choice was to use precise legal terminology such as "enacted," "legally binding," and "enforceable" instead of policy-oriented or descriptive language. This ensures the provision communicates mandatory legal rules with clarity, certainty, and consistency, which are essential principles of legislative drafting.